

Contentious Chamber

Decision on the merits 134/2024 of October 25, 2024

File number: DOS-2020-04798

Subject: Complaint against a search engine for refusal to delist

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, sitting alone.

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal rules as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant";

The defendants:

GOOGLE LLC, a company under the law of the State of Delaware, with its registered office at 1600 Amphitheatre Parkway Mountain View, CA 94043, California (United States); hereinafter referred to as "Google LLC" or "the first defendant";

GOOGLE BELGIUM SA, a company under Belgian law with its registered office at 1040 Etterbeek, chaussée d'Etterbeek 180, registered with the Crossroads Bank for Enterprises under number 0878.065.378; hereinafter referred to as "Google Belgium" or "the second defendant";

Both represented by counsel Master Gerrit VANDENDRIESSCHE, gerrit.vandendriessche@altius.com and Master Louis-Dorsan JOLLY, louis-dorsan.jolly@altius.com, lawyers whose office is located at 1000 Brussels, Avenue du Port 86C, box 414;

Hereinafter collectively referred to as "the defendants".

I. Facts and Procedure

1.

The subject of the complaint concerns the refusal to delist the URLs [...] (hereinafter "URL 1") and [...] (hereinafter "URL 2") containing personal data relating to the complainant. These referenced news articles concern the conviction of the complainant in 2008 by the Court of First Instance of [...] to four years of imprisonment for acts of morality committed a few years earlier.

2.

The defendants report² in this regard that, as mentioned in the said articles, the complainant, [...] was guilty of the rape of a minor [...]. The complainant had already been convicted [...] for other acts of violence. [...]. The defendants also report that in its decision, as relayed in the news articles, the Court emphasized the extreme violence of the acts, the young age of the victim, the consequences suffered, and the lack of awareness and remorse from the complainant.

3.

It appears from the documents subsequently submitted by the complainant with his complaint that on March 7, 2019, the management of the press group that publishes the newspaper Y, which published the article subject to URL 1, responded to the complainant indicating that according to the terms of his request (which alludes to the fact that the article referenced by URL 1 appears when his names are typed on the Internet), it is not so much the archiving of the article that he challenges but the indexing of it by search engines such as Google. The publisher therefore invites the complainant to submit a delisting request to Google. The publisher adds that this route— which preserves the integrity of the

news article—should be preferred in order to avoid any disproportionate interference with freedom of expression.

2 Aside from submitting his mediation request form, the complainant did not conclude as will be specified further in this decision.

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4.

It also appears from the case file that on the same March 7, 2019, the complainant submitted a request for de-referencing to Google LLC, solely concerning URL 1. This request was made to Google LLC via the online form provided by the latter.

5.

On the same day, Google LLC acknowledged receipt of the request and subsequently provided its response after an initial analysis on March 14, 2019. Google LLC then informed the complainant that it had decided not to intervene regarding this URL 1, the maintenance of its indexing being justified on the basis of the public interest in having access to this information, uncensored and provided by the press.

6.

On October 9, 2020, a social worker from the "REPR – Urban Prevention Program" service of the municipality Z submitted an information request to the APD regarding other possible actions (in addition to the deletion request – or at least pseudonymization – made unsuccessfully by the complainant to the publisher of the newspaper Y, which she mentioned, and the de-referencing request to Google LLC referred to above) that the complainant could undertake. The social worker wrote the following in this regard:

"Mr. has been sentenced to (.. years) in prison in (..) for moral offenses that occurred in 2005. Today, he has served his sentence, has been released for several years, is married, has a job, and has children.

The problem is that when he types his name into Google, the first article that appears is an article from the newspaper [X] concerning his conviction of (..) with mention of the facts.

Mr. would like this not to be the case anymore, especially concerning his children. He does not want one of his children to come across this article.

But also because more than ... years have passed, he has served his sentence, and he has had no further problems with the law.

Mr. has approached the newspaper [X], which replied that it was not possible for them and that it was not their responsibility.

Mr. then made a request to Google, which responded that the reference to the document in question is justified by the public interest and that the information contained therein remains relevant in light of the purposes of data processing. Google therefore refuses to delete the URL.

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Mr. would like to know if other actions can be taken? Could you intervene, assist, or advise Mr.?"

7.

On October 19, 2020, the First Line Service (SPL) of the APD responded to this information request by informing the social worker that the complainant could submit a mediation request or a complaint to the APD against a search engine that would refuse a de-referencing request:

"You will find more information on de-indexing on the thematic page dedicated to this subject on the website of the Data Protection Authority ("APD").

As indicated on this page, if a search engine (Google in this case) refuses to grant a de-referencing request, the person concerned can submit a mediation request or a complaint to the APD."

8.

On November 4, 2020, the complainant filed a mediation request with the APD.

9.

The complainant refers to his (first) conviction dating back to 2004, for acts that took place in 2001, and indicates that he has written to the publisher [X] and to "Google" without success. He requests the following: "I ask you to do what is necessary to remove my name and take my name out of these

articles please" (sic)³. In the section "Contact details of the data controller or processor" of the request form, the complainant only mentions "the newspaper Y." The complainant refers to the reference of file DOS-2020-04798 opened following the letter from the municipality Z (above point 6) which mentions the facts that occurred in 2005 and the complainant's conviction in 2008 as outlined in point 2.

10.

On November 18, 2020, the First Line Service (hereinafter "SPL") of the APD acknowledged receipt of the complainant's mediation request. In this response, the SPL requested additional information from the complainant in order to process his request. In this context, the SPL asked to "provide us with the URLs you wish to have de-referenced" and to "provide us with the correspondence with Google."

11.

On November 20, 2020, the SPL acknowledged receipt of the complainant's email dated November 18, 2020, containing additional information in which he mentioned both his request to the publisher of the newspaper Y on one hand and his request to Google on the other hand regarding URL 1 and mentioned URL 2. The SPL declared the complainant's mediation request admissible and noted "that the URLs you [the complainant] wish to have de-referenced are as follows [URL 1 and URL 2]."

3 It is the Contentious Chamber that emphasizes this.

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12.

On December 1, 2020, at the request of the SPL and reminder of December 1, 2020, the complainant confirms to the SPL that he has not previously submitted a request for de-referencing to "Google" regarding URL 2.

13.

On December 1, 2020, following the complainant's mediation request, the SPL sends an email to Google LLC "regarding Google's refusal to de-index a URL concerning him." The SPL notes that the complainant had already submitted a "de-indexing" request to Google for URL 1 and that the complainant is also contacting the APD for the "de-indexing" of URL 2. The SPL requests Google LLC "to kindly indicate more precisely the reasons why the maintenance of the indexing of these URLs is justified by the public interest."

14.

Google LLC acknowledges receipt of this email on the same day. Google LLC then sends a response email to the SPL on December 9, 2020, detailing why the maintenance of the two disputed URLs is justified based on public interest, also emphasizing that no prior request for de-referencing had been addressed to it by the complainant regarding URL 2.

15.

On December 17, 2020, the SPL informs the complainant of Google LLC's position and that it must note that the mediation procedure has not succeeded. In this letter, the SPL also informs the complainant that with his consent, his mediation request will be converted into a complaint and forwarded to the Contentious Chamber in accordance with Article 62.2.1° of the LCA.

16.

On the same December 17, 2020, the complainant expresses his agreement in these terms: "Since the mediation procedure has not succeeded, I would like a complaint to be forwarded to the contentious service please thank you SA3/DOS-2020-04798." On January 7, 2021, the complainant sends a similar response to the APD.

17.

On January 8, 2021, the complaint is declared admissible by the SPL of the APD based on Articles 58 and 60 of the LCA, and the complaint is forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

18.

On April 2, 2021, the Contentious Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the case can be addressed on the merits. On the same date, the concerned parties (namely the complainant and the defendants) are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, under Article 99 of the LCA, of

the deadlines for submitting their conclusions.

The deadline for receiving the defendants' response conclusions is set for May 14, 2021, for the complainant's reply conclusions on June 7, 2021, and for the defendants' reply conclusions on June 29, 2021.

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19.

On April 21, 2021, the defendants request a copy of the file if it has been updated since the communication of the documents of said file attached to the letter under Article 98 LCA mentioned above. On April 28, 2021, the Contentious Chamber informs the defendants that the file does not contain any new documents.

20. On April 21, 2021, the defendants agree to receive certain communications related to the case electronically and express their intention to avail themselves of the possibility of being heard, in accordance with Article 98 of the LCA.

21.

On May 14, 2021, the Contentious Chamber receives the response conclusions from the defendants. The defendants having submitted additional and summary conclusions (reply conclusions), their arguments are detailed in point 23 below.

22.

The Contentious Chamber notes that as of June 7, 2021, it has not received any conclusions from the complainant.

23.

On June 29, 2021, the Contentious Chamber receives the reply conclusions from the defendants. The defendants' arguments can be summarized as follows.

24.

As a first ground, primarily, the defendants request that the complaint be dismissed regarding URL 2 because the complainant has not demonstrated the prior exercise of his rights with respect to (one of) the defendants concerning this URL 2. The defendants add that this requirement is mandated by the APD itself according to the complaint form (as available on its website) that it requests to be used. They also point out that the complainant does not contest not having exercised his right to erasure regarding this URL 2 in his email of December 1, 2020.

25.

As a second ground, primarily, the defendants believe that the complainant's complaint should be dismissed against the defendants who are not implicated by the complainant in his mediation request subsequently converted into a complaint.

26.

The defendants highlight that in his mediation request to the APD, the complainant exclusively targets the newspaper "X."

27.

They also add that the complainant did not challenge the indexing by the Google search engine of these two disputed articles when he agreed for his request to be converted into a complaint.

28.

Consequently, the defendants argue that the conditions for the admissibility of the complaint are not met: the complainant's complaint does not identify any processing carried out by Google LLC or Google Belgium, which the complainant intends to complain about (Article 60 of the LCA). Neither Google LLC nor Google Belgium is the data controller involved in the processing challenged by the complainant before the APD. The complainant's approach actually aims at the removal (or at all the

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less the pseudonymization) of the disputed press articles, and the complainant has explicitly identified, at the source, newspaper Y as the responsible party for the processing in question in his complaint form. In this regard, the defendants emphasize that the Market Court has already had the opportunity to rule on a comparable situation, in a judgment dated February 24, 2021 (2020/AR/1159).

29.

Based on the above, the defendants state that the Contentious Chamber is therefore neither in a position to make a decision against a data controller not mentioned in the initial complaint nor able to make a decision regarding a right whose exercise has not been expressly requested by a complainant. In other words, the present procedure exceeds the limits of the mediation request and the complainant's complaint. The Contentious Chamber could not decide to address the complaint on the merits against the defendants, and therefore the Contentious Chamber cannot also issue a binding decision against them.

30. As a third argument in the alternative, the defendants argue that even if the Contentious Chamber could continue processing this case regarding the defendants (which it cannot), it should in any case dismiss the complaint or at least order the dismissal regarding Google Belgium, which is not responsible for the processing in the context of the search engine results of Google.

31.

As a fourth argument, in a more alternative manner, the defendants contend that if, impossibly, the APD refused to consider that Google LLC is the data controller in the context of the referencing of the disputed URLs and that Google Belgium must be involved in this matter, it would be appropriate to stay the proceedings in order to await the judgment of the Market Court in case 2020/AR/1111 Google Belgium SA v. APD, which is still pending.

32.

As a fifth argument, in an even more alternative manner, the defendants assert that in any case, it must be noted in light of the circumstances of the case that the complainant cannot assert his right to de-referencing concerning the URLs leading to the two disputed press articles. His request under the GDPR is unfounded, and therefore it is appropriate to order the dismissal. In support of this fifth argument, the defendants recall the case law of the European Court of Human Rights, in particular, according to which the activity of search engines falls within the scope of freedom of expression and information, which freedoms protect not only the right to communicate information but also the right of the public to receive it.

33. They also recall that Article 17 of the GDPR enshrines the "right to erasure (right to be forgotten)" while providing an exception to this right "to the extent that this processing is

4 Since then, the Market Court has issued its judgment dated October 26, 2022 (2022/AR/483-2022/AR/484).

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necessary for the exercise of the right to freedom of expression and information," this right is not absolute.

34. Finally, they emphasize that the ruling Google Spain SL and Google Inc. by the Court of Justice of the European Union (CJEU) on May 13, 2014 interprets the right to erasure contained in the former Directive 95/46 in relation to web search engines. This ruling enshrines the right to de-referencing concerning web search engines. The GDPR (Article 17) has repealed the said Directive and codified the right to be forgotten while retaining the key elements of the balancing test between the right to privacy and the public interest, in accordance with the ruling Google Spain SL and Google Inc., which remains a benchmark in this area. In this regard, it is necessary to seek a fair balance between the respective rights and interests of the search engine operator, internet users, and the concerned individual.

35. In light of the circumstances of the case, the balance undeniably tilts in favor of the public's freedom to transmit and receive the information in question, considering the following elements:

- The disputed press articles come from serious and recognized journalistic sources, namely newspaper Y (URL No. 1) and newspaper W (URL No. 2);
- The disputed press articles are up-to-date and accurately report the plaintiff's criminal record, notably that he was convicted of various criminal offenses, including offenses against a minor;
- The plaintiff does not contest the truthfulness or legality of the two disputed press articles;
- The facts reported in the two disputed press articles are recent, and the articles are up-to-date;
- The disputed press articles have an informative purpose and contribute to the debate on an important public interest issue, namely the fight against sexual abuse, violence, and harassment (...);

- The right to be forgotten is not a right to erase or rewrite history at one's convenience.

36. In conclusion, the elements mentioned above demonstrate, according to the defendants, the overriding public interest in receiving and transmitting the disputed content in this case. Based on the outcome of this balancing of interests, in this instance, the plaintiff cannot assert the right to de-referencing concerning the indexing of the URLs leading to the disputed press articles, because (i) the processing is necessary for freedom of expression and information within the meaning of Article 17.3.a of the GDPR and, moreover, because (ii) none of the grounds referred to in Article 17.1 of the GDPR are met in this case.

5 Court of Justice of the European Union (CJEU), judgment of May 13, 2014, Google Spain SL and Google Inc. against Agencia Española de Protección de Datos (AEPD) and Mario Costeja González, C-131/12, ECLI:EU:C:2014:317.

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37. Finally, under the 6th argument presented as infinitely subsidiary, the defendants conclude that if, by some impossibility, the Contentious Chamber were to consider that an order for de-referencing is warranted in this case, such an order should be formulated with sufficient precision, as follows:

"Declare that Mr. X (read the plaintiff) is entitled, based on Article 17.1.c of Regulation (EU) 2016/679, to obtain the de-referencing of the following links in the search results of web search engines: [...] and [...]"

Order Google LLC, based on Article 100, § 1, 10° of the law of December 3, 2017, to de-reference these two links in the Google search engine from a search containing the terms X."

38. The defendants add that, moreover, any disagreement from the DPA with the outcome of the analysis conducted by Google LLC would not indicate any fault on the part of the latter but would at most reveal a reasonable difference of opinion inherent in the case-by-case approach to the right to de-referencing. Under these circumstances, no sanction could be justified.

39. On February 22, 2024, the Contentious Chamber informs the plaintiff that it has not yet been able to organize the hearing requested by the defendants and therefore has not adopted a decision on the merits in his case. The Contentious Chamber states in this regard the insufficient resources available to the DPA in general and the Contentious Chamber in particular, especially in terms of personnel, which unfortunately do not allow for the timely processing of all complaints submitted to the Contentious Chamber as it would wish.

40. In light of the above elements and the age of the case, the Contentious Chamber requests the plaintiff to indicate whether he maintains his complaint.

41. The Contentious Chamber has received no response from the plaintiff.

II. Reasoning

42. The Contentious Chamber notes that it is undeniably clear from the complaint form that the plaintiff directs his complaint against the newspaper "X." The plaintiff indeed identifies this media outlet in the section titled "Contact details of the data controller" of the form he submitted on November 4, 2020, which only concerns URL No. 1 (point 8). In the reasoning of his request, the plaintiff also refers to both newspaper X and Google. Indeed, while the plaintiff indicates that these articles can be found on the internet by typing his name, he also mentions the negative decision of newspaper Y regarding the request he submitted to that media outlet, which was the source of the disputed publication (URL1), and his desire to have his name removed from the concerned articles (point 9).

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43. The Contentious Chamber recalls in this regard that when questioned by the SPL, which asked him to complete his mediation request (see the statement of facts), the complainant added to his request documents attesting, on the one hand, to his request submitted to newspaper Y and, on the other hand, to his request regarding URL 1 to Google.

44. The Contentious Chamber also notes that in the chronology of events, the complainant's request was filed with the APD on November 4, 2020, just a few days after the SPL responded to the information request from the social intervenor of municipality Z. In its response dated October 19, 2020, the SPL exclusively addressed the filing of a potential mediation request or complaint against the search engine. However, the complainant specifically mentioned newspaper Y in his request form,

as previously noted.

45. While it is certainly not always easy for the complainant to accurately identify the true data controller responsible for the data processing in question, it cannot be concluded that the complainant has "mistaken" the data controller in this case. Indeed, the elements reported above demonstrate that the complainant initially addressed both the press publisher (of newspaper Y), responsible for the initial publication, as well as the search engine Google. This dual avenue is indeed open to the complainant: both the press publisher and the search engine can receive a request for deletion under Article 17 of the GDPR for the processing for which they are responsible, with, if applicable, a distinct outcome. Furthermore, informed via the aforementioned social intervenor that he could address the search engine, the complainant nonetheless submitted his mediation request to the press publisher (point 8) and explicitly indicated that he wished for his name and surname to be removed from the relevant press articles.

46. The mediation attempt initiated by the SPL is addressed exclusively to Google, and the Contentious Chamber notes that, notwithstanding the identification of newspaper Y in the complaint form, the SPL did not explain to the complainant the reasons why it considered his complaint to be interpreted as targeting only the search engine, nor, above all, did it inform the complainant of the dual possibility available to him.

47. The Contentious Chamber emphasizes that supervisory authorities such as the APD in this case, here through its frontline service (SPL), undoubtedly have the duty to facilitate the exercise of the right to complain for complainants, which it has sought to do by outlining the recourse to mediation regarding the search engine.⁶

6 In the same vein, the Contentious Chamber has formulated and applied several principles in its handling of complaints in recent years, among which is accessible legal protection. See in this regard Data Protection Authority, Management Plan 2024, p.28, available on the APD website.
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48. However, this facilitation cannot go so far as to transform (and consequently, in this case, to totally ignore) the request specifically addressed to another data controller who, as in this case, should not be considered entirely unrelated to the complaint or incorrectly identified as the data controller against whom a procedure could legitimately be initiated.

49. On several occasions, the Contentious Chamber has had the opportunity to emphasize that it is not easy for individuals unfamiliar with the technical concepts of data protection law to correctly identify the data controller in their complaint. The DPA is there to guide them, and the Contentious Chamber can requalify the facts.

50. However, the Contentious Chamber is of the opinion that in this case, we do not find ourselves entirely in this situation since, when informed, the complainant expressly identified the Y newspaper as the data controller in their complaint form. This is a choice that could not be entirely ignored and would require particularly explicit information and agreement from the complainant to deviate from it.

51. In this regard, the Contentious Chamber notes that the complainant's request for consent to convert their mediation request into a complaint indeed specifies that it follows the failure of the mediation but without further detail. As indicated above, this mediation attempt was unilaterally initiated against the sole search engine without any further information to the complainant. Moreover, strictly speaking, the failure of this mediation could also, a fortiori, have prompted the complainant to maintain their request regarding the publisher expressly mentioned in their complaint form. This cannot, at the very least, be excluded. Notwithstanding the SPL's desire to facilitate the exercise of the complainant's right to erasure, the conditions surrounding this initial phase of the examination of the complaint are, in the eyes of the Contentious Chamber, not entirely satisfactory. Consequently, the Contentious Chamber finds that given the specific circumstances of the case at hand, it could not validly bring the defendants into the proceedings.

52. The Contentious Chamber adds that regarding URL 2, it must also note that the complainant had not previously submitted a request for erasure to Google as they had for URL 1. As stated in the statement of facts (point 12), this is not contested by the complainant.

53. In general, the Contentious Chamber emphasizes that the exercise of their rights by the data

subjects must occur before the filing of any complaint and that consequently, this complaint can be filed no earlier than the expiration of the deadline for the data controller in question to respond. If this is not the case, the Contentious Chamber is necessarily unable to find any breach on the part of the data controller since they have not even had the opportunity to react (if applicable, by granting the request). In this case, the Contentious Chamber can only dismiss such a grievance.

54. In this case, the mediation attempt conducted by the SPL of the DPA indeed targeted both URL 1 and URL 2. As mentioned earlier, the manner in which this procedure was conducted is not entirely satisfactory, and for this reason, the Contentious Chamber cannot consider that the prior exercise of the complainant's right and the refusal by Google in the context of this mediation can be taken into account in the present procedure.

55. As for the request for erasure - more specifically for de-indexing - as such, the Contentious Chamber considers in any case that given the seriousness of the facts reported by the press articles, the absence of any challenge to the veracity of these articles that has been reported to it, the seriousness of the professional media that authored them, and the time elapsed since the events, the balance between access to the disputed information on the one hand and the protection of the complainant's privacy on the other leans in favor of freedom of expression and the maintenance, via the search engine, of the accessibility of said information. The events occurred in 2005, and while they are indeed nearly 20 years old, the Contentious Chamber does not overlook that the complainant indicates having served their prison sentence. Nevertheless, the seriousness of the facts, which were criminally sanctioned even while the complainant was in semi-detention for other matters, opposes, to this day and in the absence of any other elements provided by the complainant who was nonetheless offered the opportunity, their de-indexing.

56. In conclusion, the Contentious Chamber finds that Article 17.3. a) of the GDPR opposes the de-indexing of the disputed URLs. The complainant was therefore not in a position to obtain the delisting of these URLs, and no breach can, regardless of their qualification, be attributed to the defendants due to their maintenance.

III. Corrective Measures and Sanctions

57. Under Article 100 LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with the requests of the data subject to exercise these rights;

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- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance with processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° forward the file to the Public Prosecutor's Office of the King of Brussels, which will inform it of the follow-up given to the file;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

58. In this case, the Contentious Chamber decides to dismiss the complaint without further action, in accordance with Article 100, 1° of the LCA, for the reasons set out below.

59. In matters of dismissal without further action, the Contentious Chamber is required to justify its decision step by step⁷ and to:

- pronounce a technical dismissal without further action if the file does not contain or does not sufficiently contain elements likely to lead to a sanction or if it has a technical obstacle preventing it

from making a decision;

- or pronounce an opportunistic dismissal without further action if, despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate given the priorities of the Data Protection Authority (DPA) as specified and illustrated in its Policy on Dismissal without Further Action⁸.

7 Market Court (Court of Appeal of Brussels), September 2, 2020, judgment 2020/AR/329, p. 18.

8 In this regard, the Contentious Chamber refers to its policy on dismissal without further action as developed and published on the website of the Data Protection Authority: <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

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60. In the event of a dismissal without further action based on several grounds, these must be addressed in order of importance⁹.

61. Under the terms of this decision, the Contentious Chamber decides to dismiss the complaint without further action for a dual technical reason.

62. As reported in Title III, the Contentious Chamber found that it was unable to validly summon the defendants and therefore could not make a decision against them given the specific circumstances surrounding the examination of the complainant's mediation request and its transformation into a complaint. Consequently, it dismisses the complaint without further action for this technical reason.

63. The Contentious Chamber also believes that the complaint should be dismissed without further action since no violation of Article 17 of the GDPR can be attributed to the defendants.

64. Insofar as the Contentious Chamber upholds the defendants' argument, it decides not to organize the hearing requested by them.

IV. Publication of the Decision

65. Given the importance of transparency regarding the decision-making process and the decisions of the Contentious Chamber, this decision will be published on the DPA's website, with the removal of direct identification data of the complainant and the cited individuals, whether natural or legal persons, excluding the defendants.

66. The Contentious Chamber specifies that the publication of this decision with the identification of the defendants serves several objectives.

67. Given the importance of the search engine "Google" for many internet users and the fact that a large number of people residing in Belgium are referenced in one way or another by the search engine "Google," the Contentious Chamber finds it relevant to give this decision publicity that raises awareness among internet users of their rights under the GDPR, how to exercise them, and the limits thereof if applicable. In this regard, even though the decision directly concerns only the complainant, it is also of interest to a large part of the general public.

9 Cf. Title 3 – In what cases is my complaint likely to be dismissed without further action by the Contentious Chamber? from the policy on dismissal without further action of the Contentious Chamber.